

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 680

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO INTERVIEWS OF ALLEGED CHILD ABUSE VICTIMS; AMENDING SECTION 16-1618, IDAHO CODE, TO PROVIDE THAT ALL INTERVIEWS OF ALLEGED VICTIMS OF CHILD ABUSE SHALL BE DOCUMENTED BY AUDIO OR VIDEO TAPING; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 16-1618, Idaho Code, be, and the same is hereby amended to read as follows:

16-1618. ~~INVESTIGATIVE~~ INTERVIEWS OF ALLEGED CHILD ABUSE VICTIMS. Unless otherwise demonstrated by good cause, all ~~investigative or risk assessment~~ interviews of alleged victims of child abuse ~~will, including but not limited to safety assessments, investigative interviews, and risk assessment interviews,~~ shall be documented by audio or video taping whether conducted by personnel of law enforcement entities, the department of health and welfare or child advocacy centers. The absence of such audio or video taping shall not limit the admissibility of such evidence in any related court proceeding.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.